

[doc. web n. 10102334]

Provision of December 12, 2024

Register of provisions

n. 766 of December 12, 2024

## THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by  
Prof. Pasquale Stanzione, President, Prof.  
Ginevra Cerrina Feroni, Vice President, Dr.  
Agostino Ghiglia and Attorney Guido Scorza, members, and  
Dr. Claudio Filippi, Deputy Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament  
and of the Council of April 27, 2016, concerning  
the protection of natural persons with regard to  
the processing of personal data, as well as the free  
movement of such data and repealing Directive  
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing  
"Code regarding the protection of personal data,  
containing provisions for the adaptation  
of the national legal system to Regulation (EU)  
2016/679 of the European Parliament and of the Council, of  
April 27, 2016, concerning the protection of  
natural persons with regard to the processing of personal data,  
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter  
"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning  
internal procedures of external relevance,  
aimed at carrying out the tasks and  
exercising the powers entrusted to the Guarantor for the  
protection of personal data, approved by  
Resolution No. 98 of April 4, 2019, published in  
G.U. No. 106 of May 8, 2019 and on [www.gpdp.it](http://www.gpdp.it), doc.  
web n. 9107633 (hereinafter "Guarantor Regulation  
No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary  
General pursuant to Article 15 of the Guarantor's  
Regulation No. 1/2000 on the organization and  
operation of the office of the Guarantor for the  
protection of personal data, doc. web n. 1098801;

REPORTING Dr. Agostino Ghiglia;

## PREAMBLE

### 1. Introduction.

With a report received on XX pursuant  
to Article 144 of the Code, several citizens have  
complained of an alleged violation of the regulations  
on the protection of personal data through  
the use of a video surveillance system for the purpose

of detecting violations of Legislative Decree No. 285 of April 30, 1992 ("New Road Code" or "CdS") by the Municipality of Portici (hereinafter the "Municipality").

In particular, the report highlighted the absence of suitable information pursuant to Article 12 and following of the Regulation, as no information sign was posted near the locations where the cameras were positioned, as evidenced by the photographs attached to the aforementioned report.

## 2. The investigative activity

In response to a request for information from the Authority (prot. n. XX of XX) pursuant to Article 157 of the Code, with a note dated XX, the Municipality stated, in particular, that:

- "The Municipal Council, with Resolution No. XX of XX, executive pursuant to law, in order to reduce the accident rate due to vehicular traffic with the red traffic light activated, has decided to install automatic violation detection systems on the two existing traffic light systems in the city territory";
- "In relation to the Administration's directives, a managerial determination No. XX of XX was issued, approving the procedure for the rental of the EnVES EVO MVD 1505 traffic violation detection system on the 2 existing traffic light systems in the City. The ENVES EVO MVD 1505 system has been approved by the Ministry of Infrastructure and Transport with D.D. of XX No. XX for the detection and documentation of traffic light violations. The aforementioned detection devices, installed in the territory on XX, store and record images only in the event of a violation related to passing with a red traffic light (circular from the Ministry of the Interior XX prot. XX), with front or rear views of the vehicle in violation, with the front windshield obscured, making neither the driver nor the passengers on board the recorded vehicle recognizable";
- "Following the registration of the violation, it is subjected to subsequent validation activity by public officials (specifically identified among the personnel belonging to the P.L. Command and at duly certified stations) who proceed, always in the validation phase, to obscure data relating to subjects not involved in the administrative assessment";
- "The video recordings identify only the essential elements for the preparation of the report of the assessment of violations pursuant to the implementation regulation of the new Road Code. Only after this validation activity are the data (license plate, day, time, and place of the violation) and the related images in proprietary encrypted format imported by the personnel of the Local Police into the management software in use at the Command, and the license plates subsequently verified at the archives of the Civil Motorization";

- "The automatic violation detection activity respects the principle of proportionality since the processing of data does not exceed the purpose pursued (Article 11 paragraph 1 of the Provision regarding video surveillance of April 8, 2010), that is, the detection of the violation. Regarding the calibration and approval of the devices.

"above-mentioned, the relevant certifications are attached from which the dates of verification and control of the systems themselves can be inferred";

- "As for the obligation to give prior notice of the use of the systems for the detection of traffic light violations, no regulation provides for the indication of such detection activity outside the cases provided for by Decree Law No. 121/2002, converted into Law No. 168/2002. The obligation to indicate the presence of control systems that operate automatically is found only in the aforementioned decree. This regulation, partially incorporated in Article 201 of the Highway Code, refers only to the detection of violations of Articles 142, 148, and 176. Therefore, the provision does not apply to devices that detect passing through a red light. Consequently, the presence of automatic detection systems for traffic light violations does not need to be signaled by specific signage. Unlike the regulations regarding speed limit violations, there is no prescription in this regard (Civil Cassation No. 8415 of 27.04.2016)";

- "The retention of alphanumeric data contained in the plates by the system is limited to cases where there is a violation of passing through a red traffic light and for the retention periods provided by law. In any case, the right of the interested party to request access to their data (images) to view or obtain copies of the photographic images recorded by the aforementioned equipment is guaranteed only after obscuring the data relating to individuals not involved in the detection";

- "Regarding the impact assessment on the processing of personal data in relation to the use of the devices in question (Article 35 of the Regulation), the Municipality of Portici deemed it unnecessary to draft such a document considering the following circumstances: a. the system does not carry out any systematic and comprehensive assessment of personal aspects relating to individuals, based on the automated processing that the system itself implements: as stated, the system automatically activates only if, upon the activation of the red traffic light and until it is turned off, a vehicle commits the violation of passing through the red light. Therefore, it is necessary that both the presence of the red traffic light and the violation occur simultaneously. Under these only circumstances, only the license plate of the vehicle committing the violation is recorded, and not the image of its occupants, who, even if visible, are obscured. Furthermore, for the purposes of detecting the violation, the system extracts "static images" of the moment of surpassing the traffic light and not a video in the classical sense of the term, such as dynamic images. Any part of the image that contains third parties potentially captured by the detection is obscured through specific functions of the system and verified by the personnel of the Municipal Police Command of Portici. Therefore, any profiling activity and, more generally, any further processing of the captured images is completely excluded; regarding the legal effects of the detection, they consist solely of the forwarding of the violation report to the vehicle's registered owner, without any significant impact on the rights and freedoms of individuals; b. the processing in no way concerns any of the types of data indicated in Article 9, paragraph 1, nor data relating to criminal convictions and offenses referred to in Article 10; rather, it is the detection of the violation that generates only the forwarding of the violation report (not a crime, therefore) to the registered owner of the vehicle that committed it; c. the system does not carry out systematic large-scale surveillance of a publicly accessible area, as it only activates for very brief intervals triggered by the activation of the red traffic light and immediately thereafter; moreover, the obscuring of any image of a physical person, even that which may capture the driver or passengers of the vehicle to be sanctioned, completes a picture that allows for the reasonable exclusion of the hypothesis of systematic surveillance."

With reference to the conduct of the Municipality, the Office, based on the elements acquired and the facts emerged following the investigative activity, notified the same, on date XX (protocol no. XX) pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation for having acted in a manner not compliant with the principle of "lawfulness, correctness, and transparency" and for failing to draft an impact assessment in violation of Articles 5, paragraph 1, letter a), 12, 13, and 35 of the Regulation.

The Municipality, with the aforementioned act, was invited to submit defensive writings or documents to the Authority or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

By note of XX (protocol no. XX), the Municipality submitted a defensive memorandum, stating, in particular, that:

- "it immediately activated in an attempt to remedy the processing activity to make it fully compliant with current regulations and mitigate the negative effects of the violation of personal data concerning the interested parties";

- "the traffic light violation detection system EnVES EVO MVD 1505 (approved by the Ministry of Infrastructure and Transport with D.D. of XX no. XX) was installed and put into operation on date XX in 2 locations within the Municipality of Portici, out of a total of 5 traffic light systems installed in the municipal territory [...] The actual installation date of the systems is"

XX while the system startup material and, therefore, in fact, the processing of data in violation began on XX, as demonstrated by the installation certificates attached to this document [...];

- "The detection system in question, under the conditions observed by this Office, has been operational since XX, until XX, the date on which the Municipality of Portici took steps to end the violation by installing appropriate signs containing the first-level information near the traffic light stations, in accordance with the model attached to the "Guidelines 3/2019 on the processing of personal data through video devices," adopted by the European Data Protection Board on January 29, 2020, as well as the measures of this Authority";

- "The Municipality and, in particular, the Municipal Police Command, in total good faith, believed that the characteristics of the system in question and its operation did not impose on it the obligations of prior notification and detailed information required by the measures of the Guarantor regarding video surveillance systems and by the GDPR. The same applies to the so-called derived obligations of drafting the data protection impact assessment (art. 35 GDPR). Obviously, as evidenced by the documentation attached to this communication, once the situation of non-compliance was understood, this Municipality immediately took steps to adapt the system in question to the prescriptions and obligations set forth in the applicable legislation";

- "Following the aforementioned communication from this Authority, on XX, [...] the Municipality took the following measures [...]: – Install at the 5 traffic light stations the first-level informational signage in accordance with the "Guidelines 3/2019 on the processing of personal data through video devices," adopted by the European Data Protection Board on January 29, 2020, and the measures of the Guarantor regarding video surveillance. Such first-level information includes the following details: purpose of processing, identity of the data controller, contacts of the data protection officer, retention periods, existence of the rights of the data subject, contacts of the data processor, and finally a clear reference to the second-level information and the physical office as well as the web page where it can be found. In Attachment No. 2, both the format of the signal and the actual position relative to the relevant detection system are represented; – Publish on the Municipality of Portici's website – Thematic Area "Municipal Police and Violations" as well as in the Privacy section of "Transparent Administration" the Extended Information on the processing of personal data through detection devices for violations of the Highway Code [...] The extended information is also available at the Municipal Police Command office and, upon request, can be sent via certified email (P.e.c.) or regular email (P.e.o.). In the same section, the Regulation for the management and use of the video surveillance system is also published (Approved by Municipal Council Resolution No. XX as an update to the Regulation approved by D.G.C. No. XX of XX, as amended by the Extraordinary Commissioner Resolution No. XX of XX). – Publish on the municipal website in the "Forms/Municipal Police" section as well as in the thematic area "Municipal Police and Violations" and in the "Privacy" section of Transparent Administration a specific template aimed at exercising rights regarding the protection of personal data titled "Municipality of Portici Form No. XX starting from XX for the exercise of rights regarding the protection of personal data by the data subject and communication of data." This template is also available and distributed at the Municipal Police Command office and, upon request,

can be sent via certified email (P.e.c.) or regular email (P.e.o.);

- "This Municipality is committed to adjusting the level of security as much as possible; to this end, it has defined and implemented: ☐ organizational measures: - operational provisions and internal procedures that require, regarding any initiative that involves, even potentially, the processing of personal data, consultation with the DPO and a request for written opinions from them to ensure the lawfulness, fairness, and transparency of the processing, with particular regard to any forms that may be required and the liability profiles of third parties participating/collaborating in the processing of personal data, - training sessions and operational instructions on the processing of personal data for specifically identified and authorized personnel, with a particular focus on cases similar to those in question, - updating the Regulation for the management and use of the video surveillance system approved by D.G.C. No. XX of XX, as amended by the Extraordinary Commissioner Resolution No. XX of XX and approval of the DPIA";

- "Has implemented measures to ensure the limitation of risks to the rights and freedoms of natural persons through measures [...] with reference to the specific security objective";

- "Has drafted the "Data Protection Impact Assessment (art. 35 GDPR) related to the processing of personal data carried out by this Municipality from the photo/video recording devices included in the system for detecting violations (approved by Municipal Council Resolution No. XX)." During the hearing held on XX, the Municipality clarified that it "immediately adopted measures aimed at correcting the reported and contested critical issues; we were not caught off guard."

from inertia and we wanted to implement what the Authority suggested we adopt. When we installed the surveillance systems in question, there were many emergencies from the perspective of traffic, road accidents, noise pollution, and environmental issues that made the installation necessary and urgent; it was unimaginable to have such a significant and broad impact on the sanctioning aspect, and consequently on the protection of citizens' personal data. In the month of XX, approximately 500 validated violation reports were received daily; recently we have reduced this to 30 reports per day, so the preventive and educational function of the surveillance systems has achieved its objective, and even the judicial appeals have almost always been rejected in favor of the administration. On XX, the entity concluded the adoption of administrative acts containing the necessary measures to adapt the surveillance systems (e.g., information notice) and that "regardless of the communication from the Authority, since the month of XX, the Commander of the Local Police, the responsible manager for security and [...] the DPO of the Municipality] had already prepared an activity to regularize the activities related to the detection of traffic violations, preparing an update of the regulation on surveillance, a text of extended information, and a draft impact assessment to remedy what we already considered a critical issue; unfortunately, the organizational and operational problems of the administration have prevented a greater speed. Initially, we also had doubts about the systematic nature of the processing that necessitates the DPIA because the speed camera only activates in the event of a detected violation."

### 3. Outcome of the investigative activity.

#### 3.1. Applicable regulations regarding personal data protection.

According to the regulations on personal data protection, public entities may process the personal data of the data subjects if the processing is necessary, in general, to fulfill specific obligations or tasks provided by laws (art. 6, paragraph 1, letter c) of the Regulation). The processing is also lawful when it is "necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller" (art. 6, paragraph 1, letter e) and paragraphs 2 and 3 of the Regulation; 2-ter of the Code). The data controller is also required, in any case, to comply with the principles regarding personal data protection, including those of "lawfulness, fairness, and transparency," according to which personal data must be "processed lawfully, fairly, and in a transparent manner in relation to the data subject" (art. 5, par. 1, letter a) of the Regulation).

#### 3.2. Information to data subjects.

In light of the aforementioned principle of transparency, the data controller must adopt appropriate measures to provide the data subject with all information in a concise, transparent, intelligible, and

easily accessible form, using clear and plain language (art. 12, par. 1, of the Regulation). In particular, when video devices are used, the data controller, in addition to providing first-level information through the placement of warning signs near the area under surveillance, must also provide data subjects with “second-level information,” which must “contain all the mandatory elements pursuant to Article 13 of the [Regulation]” and “be easily accessible to the data subject, for example through a complete information page made available at a central hub [...] or posted in an easily accessible location” (“Guidelines 3/2019 on the processing of personal data through video devices adopted by the European Data Protection Board on XX), particularly par. 7; but see also the “Provision on surveillance” from the Authority dated April 8, 2010, web doc. no. 1712680, particularly par. 3.1; lastly, see the FAQs from the Authority regarding surveillance, web doc. no. 9496574, no. 4; see also provisions dated January 11, 2024, no. 5, web doc. no. 9977020; no. 312 of July 18, 2023, web doc. no. 9920578; October 20, 2022, no. 341, web doc. no. 9831369; April 28, 2022, no. 162, web doc. no. 9777974; April 7, 2022, no. 119, web doc. no. 9773950; September 16, 2021, no. 327, web doc. no. 9705650 and March 11, 2021, no. 90, web doc. no. 9582791).

The first-level information (warning sign) “should communicate the most important data, such as the purposes of the processing, the identity of the data controller, and the existence of the rights of the data subject, along with information on the most significant impacts of the processing” (Committee Guidelines, cited, par. 114). Furthermore, the signage must also contain those pieces of information that could be unexpected for the data subject. This could include, for example, the transmission of data to third parties, particularly if located outside the EU, and the retention period. If such information is not indicated, the data subject should be able to trust that there is only real-time surveillance (without any data recording or transmission to third parties) (Committee Guidelines, cited, par. 115).

The first-level warning signage must contain a clear reference to the second level of information, for example, indicating a website where the text of the extended information can be consulted. During the investigation, it emerged that from the date the video system in question became operational (XX) until XX, the Municipality did not provide the data subjects...

**\*\*1. First and second level information,\*\***

thereby acting in violation of the principle of "lawfulness, fairness, and transparency" as set forth in Article 5, paragraph 1, letter a) of the Regulation, as well as Articles 12 and 13 of the Regulation.

**\*\*3.3. Impact assessment.\*\***

In cases of high risks for the data subjects - arising, for example, from the use of new technologies and always present where systematic large-scale monitoring of a publicly accessible area is carried out (see Article 35, paragraph 3, letter c) of the Regulation) - the data controller must carry out a data protection impact assessment in order to adopt, in particular, appropriate measures to address such risks, consulting the Authority in advance, where the conditions apply (see Articles 35 and 36, paragraph 1, of the Regulation).

In this regard, the Municipality has stated that, at the time of the installation of the video devices in question, it did not conduct an impact assessment as it erroneously believed it was unnecessary, proceeding to draft it only after the initiation of the investigation.

However, it is noted that the Municipality was certainly subject to the obligation to draft a data protection impact assessment, considering that, pursuant to the aforementioned Article 35, paragraph 3, letter c) of the Regulation, it is always required in cases of "systematic large-scale monitoring of a publicly accessible area," which allows for the collection of numerous data, including information related to the location and movement of the data subjects, a circumstance that occurs in this case.

Furthermore, it is highlighted that Article 35 of the Regulation obliges controllers to conduct the impact assessment before commencing the processing, also considering that this tool is suitable for demonstrating the accountability of the controller regarding the processing carried out (see Provision No. 162 of April 28, 2022, web document No. 9777974).

In light of the above considerations, having not drafted a data protection impact assessment with a certain date prior to the commencement of processing, it must be concluded that the Municipality acted

in violation of Article 35 of the Regulation.

**\*\*4. Conclusions.\*\***

In light of the evaluations mentioned above, it is noted that the statements made by the Municipality, as the data controller, during the investigation - the truthfulness of which may be subject to accountability under Article 168 of the Code - while deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of the present procedure pursuant to Article 14, paragraph 1, of the Authority's Regulation No. 1/2019, as none of the cases provided for by Article 11 referenced therein apply.

Therefore, the preliminary evaluations of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Municipality is noted, for having processed personal data in violation of Articles 5, paragraph 1, letter a), 12, 13, and 35 of the Regulation.

The violation of the aforementioned provisions makes the administrative sanction provided for by Article 83, paragraph 5, of the Regulation applicable, pursuant to Articles 58, paragraph 2, letter i), and 83, paragraph 3, of the same Regulation, as also referenced by Article 166, paragraph 2, of the Code.

**\*\*5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i, and 83 of the Regulation; Article 166, paragraph 7, of the Code).\*\***

The Authority, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] corrective measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case," and, in this context, "the College [of the Authority] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Authority's website pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Authority's Regulation No. 1/2019).

Considering that the violation of the aforementioned provisions by the Municipality occurred as a result of conduct that can be considered unitary (same processing or related processes, considering that they are configured as compliance related to the same video surveillance system), Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, the most serious violations, which pertain to Articles 5, 12, and 13 of the Regulation, are subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, as also referenced by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000 (twenty million/00).

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

With specific regard to the nature and severity of the violation (Article 83, paragraph 2, letter a), of the Regulation), it must be considered that the Municipality does not...

has provided the first and second level information to the interested parties regarding the processing of personal data carried out through a video system, nor has it drafted the impact assessment.

In favor of the Municipality, however, the following should be considered:

- the negligent nature of the violation, given the Municipality's initial erroneous belief regarding the non-existence of the obligation for such compliance, which, in fact, was fulfilled as soon as the investigation was initiated (Article 83, paragraph 2, letter b) of the Regulation);
- that the processing in question does not relate to special categories of data (Article 83, paragraph 2, letter g).

In light of these circumstances, it is believed that, in this specific case, the level of severity of the violation committed by the data controller can be considered medium (cf. European Data Protection

Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of May 23, 2023, point 60).

That said, it is considered that, for the purposes of quantifying the sanction, it should be taken into account, in favor of the Municipality, that there are no previous relevant violations committed by the data controller (Article 83, paragraph 2, letter e) of the Regulation) as well as the degree of cooperation shown by the data controller with the supervisory authority in order to remedy the violation and mitigate its possible negative effects, considering that it promptly provided the first-level information by posting signs near the video systems installed in five locations in the city and published a second-level information notice on the institutional website, as well as drafted the impact assessment (Article 83, paragraph 2, letter f) of the Regulation).

In light of the aforementioned elements, evaluated in their entirety, it is deemed appropriate to determine the amount of the monetary sanction at €6,000.00 (six thousand/00) for the violation of Articles 5, paragraph 1, letter a), 12, 13, and 35 of the Regulation, as an administrative monetary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

In this context, it is also considered that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this section containing the injunction order on the Garante's website should be carried out.

This is in consideration of the specific circumstances of the concrete case, concerning the Municipality's failure to comply with the principle of transparency referred to in Article 5, paragraph 1, letter a) of the Regulation, having failed to provide the information (not even of "first level") to the interested parties regarding the processing in question, and the failure to draft the impact assessment prior to the commencement of the aforementioned processing.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE Garante

pursuant to Articles 57, paragraph 1, letter f), and 83 of the Regulation, finds the unlawfulness of the processing carried out by the Municipality of Portici in the terms stated in the reasoning, for the violation of Articles 5, paragraph 1, letter a), 12, 13, and 35 of the Regulation;

#### ORDERS

pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation, as well as Article 166 of the Code, the Municipality of Portici with legal headquarters at Via Campitelli, No. 1, Portici (NA), 80055 - C.F. 80015980636 - to pay the total sum of €6,000.00 (six thousand/00) as an administrative monetary sanction for the violations indicated in the reasoning.

It is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

#### ORDERS

the Municipality of Portici:

- to pay the total sum of €6,000.00 (six thousand/00) in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, according to the methods indicated in the annex, within thirty days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981;

#### DISPOSES

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of the injunction order on the Garante's website;

pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Garante Regulation No. 1/2019, the publication of this provision on the website of the Authority;

pursuant to Article 17 of the Garante Regulation No. 1/2019, the annotation of this provision in the

internal register of the Authority, as provided for by Article 57, paragraph 1, letter u), of the Regulation.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, December 12, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE DEPUTY SECRETARY GENERAL

Filippi